FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF BRONX

U.S. BANK NATIONAL ASSOCIATION, AS SUCCESSOR TRUSTEETO BANK OF AMERICA N.A. AS SUCCESSOR BY MERGER TO LASALLE BANK, N.A., AS TRUSTEE FOR THE CERTIFICATEHOLDERS OF THE MLMI TRUST, CERTIFICATES, SERIES 2007-HE1

Plaintiff,

-against-

DAVID DEL FRANCO, ET AL.

Defendant.

Index No. 35455/2014E

MORTGAGED PROPERTY:
351 QUINCY AVENUE
BRONX, NY 10465

COUNTY: BRONX
SBL #: Block 5579, Lot 86
Sale Date: March 16, 2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 378,488.67
2. Adjusted Judgment Amount (Upset Price): $ 718,849.35
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 573,668.40
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ 0
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $

Referee Name: Alberto Torres Telephone: (718) 620-0106
Address: 629 Melrose Avenue, Bronx, NY 10455
Email: al_torres_1@hotmail.com Signature/Date: 3/16/2026

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Terence Gee
Address: 14436 78th Avenue
Flushing, N.Y. 11367
Telephone: 917-324-2033
Email:
Signature/Date: 3.16.26

C. To Be Completed by Purchaser

Name: Plaintiff
Address:
Telephone:
Email:
Signature/ Date:

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19